FORWARD MAKIWA
and
ASANI MUZIPASI
and
NDAONA SONGWA
and
RUMBIDZAI CHIMUSARO
and
GIVEMORE CHAKANZA
and
HANDISEN MUSANZIKA
versus
COMMISSIONER OF INSURANCE, PENSIONS AND PROVIDENT FUNDS
and
INSURANCE AND PENSIONS COMMISSION
and
PELHAMS LIMITED PENSION FUND

HIGH COURT OF ZIMBABWE
MUSITHU J
HARARE, 1 and 7 April 2026 and 21 April 2026

Urgent Chamber Application – Interdict

C. Kuhuni, for the applicants
N. Mugandiwa, for the 1st and 2nd respondents

MUSITHU J:

1. The applicants who are all former employees of Pelhams Limited (Pelhams), and beneficiaries of the third respondent's pension fund approached this Court on an urgent basis seeking the relief of an interdict. The interdict was sought to restrain the first respondent from implementing her decision to disqualify and remove Leonard Chirewo and Victor Mushawemhuka as employee appointed trustees of the third respondent, pending the determination of an application for review initiated by Chirewo and Mushawemhuka which was filed and is pending under HCH 1387/26.

2. The applicants also sought an order restraining the third respondent from taking any steps to reverse or interfere with the sale of its Kadoma commercial property which was concluded around September 2024. The applicants also wanted the third respondent interdicted from making or implementing any decisions concerning the administration or distribution of the third respondent's assets without the required representation of

employee appointed trustees on its Board of Trustees, pending the finalisation of the said review proceedings.

Background to the application and the applicants' case

3. Pelhams, a former furniture manufacturing venture, ceased operations sometime in 2015 following its acquisition by TN Holdings. As a result of the acquisition, the employment contracts of the applicants and some 240 employees were terminated. The applicants and the former employees remained members of the third respondent. None of the members of the third respondent received any pension benefits despite their monthly contributions to the fund that were deducted during the subsistence of their employment contracts.

4. According to the applicants, when Pelhams was unbundled from Delta Corporation Limited (Delta), Delta allocated four commercial immovable properties to the third respondent as a dividend in specie. These were intended to benefit the fund's members, being employees of Pelhams at the time, numbering about 250. The immovable commercial properties were situated in Marondera, Kadoma, Gweru and Chinhoyi. On termination of their employment, the applicants were informed that these properties would be sold and the net proceeds distributed amongst members of the fund.

5. The third respondent was effectively a paid up fund since no further contributions were being made to that fund. It was hoped that upon the realisation and distribution of its remaining assets, the fund would be formally wound up under the supervision and guidance of the second respondent.

6. The third respondent's board of trustees was required to first procure the transfer of the immovable properties from a Delta property holding entity known as Quality Properties (Private) Limited into the third respondent's name. Chirewo and Mushawemhuka joined the third respondent's board of trustees around April 2022 as employee appointed trustees. Chirewo was elected Chairman of the Board at the same time. Around 31 May 2022, the board resolved that the immovable properties be transferred from the Delta entity to the third respondent. It was expected that the properties would thereafter be sold and the net proceeds distributed amongst the fund's members.

7. According to the applicants, the third respondent now held title to all the immovable properties. What remained was the sale of the immovable properties and the distribution of the net proceeds to the members of the fund. In September 2024, the third respondent's Kadoma Commercial property was sold to the sitting tenant for US$640,000.00. The applicants did not receive any proceeds from the sale of the

property. This was because the third respondent's principal officer, Ashleigh Nyambirai, opposed the sale and wrote to the first respondent alleging that Chirewo had signed the resolutions authorising the sale without a valid board resolution. The dispute remained unresolved, and Nyambirai obtained resolution from the employer appointed board members and filed an urgent application against Chirewo in the name of the third respondent, seeking a reversal of the sale of the Kadoma property.

8. The third respondent's urgent application was struck off the roll for not being urgent. The third respondent filed yet another application under HCH 5182/26 seeking the same relief. Chirewo filed opposing papers. The application was struck off the roll because of the third respondent's failure to comply with the rules of court.

9. Sometime around 23 March 2026, Chirewo and Mushawemhuka informed the applicants that they were disqualified and removed from the third respondent's Board of Trustees. For that reason, they were no longer able to represent the applicants as employee appointed trustees on the third respondent's board. The applicants averred that apart from engaging legal practitioners to challenge their removal by way of review proceedings, Chirewo and Mushawemhuka could not take any immediate action to prevent the real and imminent risk to the applicants' interests pending the determination of the application for review.

10. The applicants feared that whilst the review proceedings were ongoing, the third respondent would, without consulting the applicants or any employee appointed trustee, appoint replacement trustees of its own choosing. Those trustees would then proceed to take steps to reverse the sale of the Kadoma property or otherwise deal with the fund's assets in a manner adverse to the applicants' interests, thereby frustrating the applicants legitimate and accrued rights to the proceeds of the said sale.

11. The applicants averred that their fears were well founded for the following reasons. The third respondent's principal officer had not at any stage communicated to the applicants that she wrote to the first and second respondents regarding the sale of the Kadoma property. The first and second respondents had also not informed the applicants of any decisions made in that regard. In terms of the Pension Fund rules, the board of trustees must be made up of both employee appointed and employer appointed representatives. Since the removal of Chirewo and Mushawemhuka, the board no longer had the required numbers of board members representing the employees.

12. No communication was made to the applicants or other members since 27 February 2026 by the third respondent inviting them to nominate or appoint employee trustees to fill the vacancies on the Board of Trustees. The employer appointed trustees and the principal officer had not accounted to the applicants for the rental income collected in respect of the third respondent's immovable properties in Marondera and Chinhoyi.

13. The applicants also pointed to their dire personal circumstances following the termination of employment in 2015. They had not received any pension any pension benefits from the third respondent. The proceeds from the sale of the Kadoma property represented their only hope of some financial relief. The reversal of the sale would prolong their financial suffering.

14. As regards the urgency of the matter, the applicants averred that they became aware of the removal of Chirewo and Mushawemhuka from the third respondent's board of trustees on 23 March 2026. They immediately engaged their legal practitioners to prepare and file the present application.

15. The first to fifth applicants filed supporting affidavits in which they associated themselves with the deposition by the first applicant

The first and second respondents' case

16. The opposing affidavit was deposed to by Dr Grace Muradzikwa in her capacity as the Commissioner of Insurance, Pension and Provident Funds. She is the head executive of the second respondent. She also deposed to the affidavit on behalf of the second respondent in the same capacity. The third respondent did not file opposing papers and neither was there an appearance on its behalf.

17. The opposing affidavit raised the following points in *limine.* The first point was that the applicants lacked locus *standi* to bring the present application. The second point concerned the material non joinder of Chirewo and Mushawemhuka to the present proceedings. The third point was that the first respondent was improperly cited. The fourth point challenged the competency of the relief sought by the applicants. The fifth point was concerned with the urgency of the matter. I shall revert to these latter in the judgment.

18. As regards the merits of the matter, the first and second respondents' case was set out as follows. The second respondent is a statutory body established under s 3 of the Insurance and Pensions Commission Act [*Chapter 24:21*] (the IPAC Act). The second respondent's

regulatory functions are set out under s 5 of the Pensions and Provident Funds Act [*Chapter 24:32*] (the Pensions Act).

19. While exercising its regulatory functions, the second respondent established that two trustees of the third respondent pension fund, Chirewo and Mushawemhuka, had disposed of the Kadoma property belonging to the Pension Fund without the approval of the rest of the third respondent's board members. The disposal was in breach of the Rules of the third respondent, as well as s 23 of the Pensions Act. In doing so, the two trustees had acted in an undesirable manner and grossly mismanaged the assets of the pension fund.

20. Around 27 February 2026, the second respondent disqualified Chirewo and Mushawemhuka as trustees of the third respondent. Around 23 March 2026, Chirewo and Mushawemhuka filed an application for the review of the second respondent's decision to disqualify them as trustees of the third respondent.

21. The first and second respondents contended that the requirements of an interim interdict had not been discharged, thus justifying the dismissal of the application. Concerning the existence of a *prima fac*ie right, the first and second respondents averred that the applicants had failed to establish the right that they sought to protect. The applicants had failed to demonstrate how the rules of the third respondent had been breached. The same rules provided for the removal from office of a trustee who had been disqualified by the second respondent in terms of the Pensions Act. It was further argued that the removal and disqualification of the trustees was done in the exercise of a lawful power. A lawful act could not be interdicted.

22. The respondents also averred that the applicants had not established any well grounded apprehension of irreparable harm. There was no evidence to show that the removal of the employee trustees would lead to the reversal of the purported sale of the Kadoma property, or that such alleged reversal was imminent. In any event, the sale of the property, which property had been transferred to the purchaser could only be set aside through an order of the court, rather than through a unilateral act of the trustees of the third respondent.

23. It was also averred that the applicants had alternative remedies to protect their rights and interests in the fund. This could be done through the nomination of replacement trustees to protect those interests. Further, any attempts to set aside the sale could be restrained through an interdict.

24. As regards the balance of convenience, it was averred that the circumstances did not favour the granting of the interdict. The respondents had acted lawfully at all material times. The implementation of the decision to remove Chirewo and Mushawemhuka was the prerogative of the third respondent, and not the first respondent. The applicants could not therefore seek to have the first respondent interdicted from implementing that decision.

The Applicants' Answering Affidavit

25. Apart from reacting to the preliminary points and the merits of the opposing affidavit, the answering affidavit raised a preliminary point of its own. The point was that the second respondent was not properly before the court in the absence of a resolution conferring Dr Grace Muradzikwa with authority to depose to an opposing affidavit on behalf of the second respondent.

The Analysis

26. I will deal with the preliminary points first, before adverting to the merits of the matter should the need to do arise. At the commencement of oral submissions, Mr *Mugandiwa* for the respondents abandoned the preliminary points on material non joinder and the use of the wrong form. The analysis will therefore be confined to the outstanding preliminaries.

Whether the second respondent is properly before the court

27. The first issue is to determine whether the second respondent is properly before the court, in view of the point taken in the applicants' answering affidavit. The first respondent deposed to the second respondent's opposition in her capacity as the Commissioner of Insurance, Pensions and Provident Funds. She did not attach any document authorising her to depose to the second respondent's opposing affidavit.

28. In his submissions on the point, Mr *Kuhuni* appearing for the applicants submitted that a corporate body could not be represented by an unauthorised party. In the absence of a resolution confirming that Dr Muradzikwa was authorised to depose to the affidavit on behalf of the second respondent, then that party was not properly before the court. Counsel cited the case of *Madzivire v Zvarivadza and Ors*[1] to support this submission.

[1] 2006 (1) ZLR 514 at p 516

29. In response, Mr *Mugandiwa* argued that the preliminary point was devoid of merit because Dr Muradzikwa was not only cited as the first respondent, but she was also the one who authored the notice of disqualification and removal as board member as against Chirewo and Mushawemhuka. She signed the letters in her capacity as the Commissioner of Insurance and Provident Funds.

30. It is common cause that legal entities can not represent themselves in litigation matters. They can only speak through the agency of natural persons, who must demonstrate that they have the authority to represent such artificial persons in litigation matters. In *Nyangani Industries (Pvt) Ltd v Radico Khaitan Ltd*[2], the court explained the position of the law as follows:

> "The position that one holds in a company does not have the effect of absolving one from showing that he is duly authorized to represent the legal entity in litigation. Where authority to litigate on behalf of a company is challenged, the party representing a legal entity must show that he is duly authorized to act on behalf of it and that it is aware of the litigation and has given authority to him or her to represent it. The fact that the deponent to the affidavit impugned holds an authoritative position in the legal entity does not help where his or her authority is challenged. A person representing a company in litigation must demonstrate that he or she is duly authorized to litigate on behalf of the company. The fact that one is the managing director of a company does not clothe him with authority to sue on behalf of the company. See *Madzivire v Zvarivadza & Another* 2006 (1) ZLR 514 (S)"[3] (Underlining for emphasis)

31. The above dictum is instructive. The mere fact that a deponent holds a position of authority in a legal entity is not sufficient to clothe them with authority to represent that entity in legal proceedings. The authority to represent the entity does not derive from the position of authority. It derives from the decision made by the entity itself through a resolution of the board, which is the vehicle through which decisions of the legal entity are made. Further, the mere fact that Dr Grace Muradzikwa signed the letters of disqualification and removal from office was not enough to clothe her with authority to represent the second respondent. She was required to place before the court a resolution which confirmed that the board of the second respondent was aware of the proceedings and that it had given her the authority to act on behalf of the entity.

32. The court determines that there is merit in the preliminary objection that the purported deposition on behalf of the second respondent was defective in the absence of a resolution authorising the deponent to represent the entity. Counsel for the respondents did not seek the court's indulgence to place the resolution before the court following the

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[2] HH 872/25 at p 4 of the judgment
[3] See also *Cuthbert Elakana Dube v Premier Service Medical Aid Society & Anor* 2019 (3) ZLR 589 (S)

objection taken on behalf of the applicants. The court could not extend an indulgence to a litigant where none was sought. The second respondent is therefore not properly before the court, and the application stands unopposed as against the second respondent.

Locus Standi

33. It was submitted that the applicants did not possess the *locus standi* to institute the present application because they failed to demonstrate a direct and substantial interest in the matter of the litigation and the relief sought. It was further submitted that the applicants were not parties to the litigation under HCH 1387/26, and they could not seek to ground their *locus standi* on litigation that they were not part to.

34. It was further submitted that the applicants were relying on speculative and indirect interests, premised on a fear of future decisions which could occur. They did not demonstrate a legally protected right, being presently threatened by the respondents.

35. In response, the applicants argued that they had the requisite *locus standi* by virtue of being members of the third respondent. As members of the fund, they had a clear, direct and substantial legal interest in the proper administration and governance of the fund. This included the right to have their elected employee representatives serve on the Board of Trustees as prescribed by the Fund's Rules. The right was independent of any rights held by Chirewo and Mushawemhuka.

36. It was submitted that the applicants did not seek to challenge the legality of the first respondent's decision to disqualify Chirewo and Mushawemhuka. That was the subject of the review proceedings pending under HCH 1387/26. What the applicants sought was to protect their own accrued rights as fund members pending the determination of the application for review.

37. The principle of *locus standi* has been the subject of legal discourse in this jurisdiction on countless occasions and is a well beaten path. In *Stevenson v Minister of Local Government & Ten Ors*[4], the court discussed the principle as follows:

> "Whilst it is well established that a party who initiates legal proceedings, whether by application or summons, should indicate in the commencing papers that he has the *locus standi* to bring such proceedings, what he has to show in order to satisfy that requirement is that he has an interest or special reason which entitles him to bring such proceedings."[5]

[4] SC 38/02 at p 2 of the judgment
[5] See also *The Civil Practice of the High Courts of South Africa,* authors *Herbstein & Van Winsen,* Fifth Edition Vol 1 at p 185

38. In very simple terms, a party instituting proceedings must demonstrate sufficient legal interest in the relief being claimed for them to have *locus standi* to institute the proceedings. It is common cause that the present application was triggered by the need to preserve the *status quo* pending the determination of the proceedings in the review matter under HCH 1387/26. It was not disputed that the applicants herein are members of the pension fund, and for that reason, they have an interest in how its affairs are managed by the board of trustees. It is also not in dispute that as members of the third respondent, the applicants have a hand in the appointment of employee members of the Board of Trustees.

39. The nature of the applicants' interest in the current proceedings, and the review matter must be understood in the relief that they claim herein. The relief sought, as already highlighted, is preservative in nature pending the return date. The applicants may not have been parties to the review proceedings under HCH 1387/26, but they clearly have an interest in the outcome of those proceedings. The review proceedings are concerned with the fate of members of the Board of Trustees that were appointed to that Board by the applicants. The litigation under HCH 1387/26 is therefore not just personal to the applicants in that matter. The applicants therein are representatives of a constituency that is affected by the review proceedings in HCH 1387/26.

40. I am therefore persuaded to accept that the applicants' interest in the proceedings under HCH 1387/26 is not exaggerated or remote. It is real. The applicants have a real interest in the outcome of the review proceedings, because Chirewo and Mushawemhuka were members of the Board of Trustees by virtue of their appointment to that board by the applicants. It is the same board that must decide on the fate of the disposal of the Kadoma commercial property in which the applicants have an interest.

41. From a reading of the first respondent's opposing affidavit and the notice of disqualification, one of the reasons behind the disqualification and removal as Board members for Chirewo and Mushawemhuka was the alleged disposal of the Kadoma property without board authority. It is the same Kadoma property that the applicants look up to for recourse for their outstanding pension benefits.

42. The relief sought pending the return date at which the fate of the applicants' claim must be interrogated on a balance of probabilities is therefore not fanciful. It must be recalled that at this stage, all the applicants need to demonstrate is a *prima fac*ie right which may be open to doubt. The applicants have a legal interest in the affairs of the third

respondent and by extension, the outcome of the review proceedings under HCH 1387/26. The court determines that the objection is without merit and it is accordingly dismissed.

Incompetent relief

43. It was submitted on behalf of the respondent that an interdict could not lie against a lawful exercise of statutory powers. An interdict served to protect a right and not an obligation. It was further submitted that the applicants had not alleged illegality, irrationality of the respondent's action to remove the members nor any impropriety. The applicants merely expressed subjective fears of what could occur. The court could not be invited to grant an interdict based on speculation.

44. It was further submitted that the relief sought by the applicants was academic and incapable of being granted as it had been overtaken by events. The applicants sought to interdict the removal of Chirewo and Mushawemhuka, but the decisions to remove the said individuals had already been taken and implemented prior to the institution of the current proceedings. An interdict was a forward-looking remedy, designed to prevent imminent or continuing conduct, and not to reverse acts already completed. The respondent further argued that the proper remedy would lie in review proceedings to set aside the decision and not an interdict to prevent what had already happened.

45. In response, the applicants denied that the disqualification of Chirewo and Mushawemhuka was lawful. The decision had been taken in violation of the *audi alteram partem* rule, as Chirewo and Mushawemhuka had had not been heard before they were summarily removed. The legality of the respondent's decision was the subject of the review proceedings. It was further submitted that the purpose of an interdict *pendente lite* was to preserve the *status quo* pending the determination of a challenge to the lawfulness of the respondent's decision. Until the review was finalised, the court could not be satisfied that the administrative act was lawful.

46. The applicants argued that to deny them an interdict on the basis that the respondent's acts were presumed lawful would be to pre-empt and pre-judge the outcome of the review proceedings, which was precisely what an interdict *pendente lite* was designed to prevent. It was also argued that a significant portion of the relief sought did not seek to reverse or challenge the disqualification decision at all. It sought to restrain the third respondent from taking steps to reverse the sale of the Kadoma property, and from making decisions on the fund's assets without the required employee representation.

47. The position of the law is that an interdict cannot be granted against lawful conduct or past invasions of a right.[6] That, however, does not imply that the court is completely disabled from scrutinising the lawfulness of that administrative conduct. The lawfulness of the conduct of an administrative functionary can only be determined after the court has had an opportunity to interrogate whether such conduct was consistent with the enabling legal instrument. That inquiry is outside the scope of the proceedings before me. It falls within the ambit of the review proceedings.

48. The lawfulness of the respondent's decision is a matter that the reviewing court must deal with. It is also a matter that arises for determination by the court on the return day, if this court is persuaded to grant the interim relief sought by the applicants. For purposes of the present proceedings, the issue is whether the applicants have demonstrated the existence of a *prima facie* case or right that entitles them to the relief sought pending the return date. The court hearing the matter on the return date, is enjoined to determine on a balance of probabilities the very matters that the respondent motivated in support of the point in *limine*.

49. It is on the return date that owing to the burden of proof that must be discharged at that point, the court may peek into the propriety of the relief sought on a balance of probabilities. It is therefore premature for this court to determine, based on a *prima facie* case, whether the applicants are seeking to undo completed administrative acts, as well as the lawfulness of the respondent's decision. All that the applicants are seeking at this stage, is the freezing of administrative acts pending the return date. The court determines that there is no merit in the objection and it is accordingly dismissed.

Urgency

50. It was submitted that the matter was not urgent, and the alleged urgency was self created and speculative. The alleged harm was speculative and not imminent. The applicants feared possible future actions without demonstrating immediacy. It was further submitted that the applicants had failed to demonstrate that the circumstances warranted an immediate intervention by the court but rather relied on mere speculation or general grievances. The respondent also argued that no urgency could arise from a lawful exercise of power and the reasonable exercise of discretion by the relevant authorities.

51. In response, the applicants argued that the matter was urgent bearing the circumstances under which events unfolded. The applicants became aware of the disqualification and

[6] *Mayor Logistics (Pvt) Ltd v ZIMRA* SC 7/14

removal of Chirewo and Mushawemhuka on 23 March 2026. On becoming aware of the developments, the applicants approached their legal practitioners to institute the present proceedings. The application was filed within four days of their becoming aware of the circumstances that triggered the litigation.

52. The applicants also argued that the urgency of the matter did not flow from the disqualification of the two employee trustees. It also arose from the imminent risk that in the absence of employee representation on the Board of Trustees, the third respondent's principal officer, Ms Nyambirai, would move to reverse the sale of the Kadoma property. Her documented conduct spoke for itself.

53. The question that arises is whether the applicants took immediate remedial action when the need to do so arose and whether they will suffer irreparable harm if the matter is not heard on an urgent basis. An applicant must demonstrate the urgency of the matter in the founding affidavit, and not merely through a certificate of urgency. From a consideration of the papers, it is clear to the court that what triggered the need to approach the court was the knowledge of the disqualification of Chirewo and Mushawemhuka. It was at that point that the applicants realised that without employee representation on the Board of Trustees, their rights were compromised.

54. Further, from a reading of the papers, it was clear that there is a discord between the employee trustees, the principal officer of the third respondent and the employer trustees. The parties were already involved in litigation in matters concerning the disposal of the assets of the third respondent. One of the reasons that triggered the disqualification of Chirewo and Mushawemhuka was the disposal of the Kadoma property.

55. The disqualification and removal of the two employee appointed trustees therefore left a gap which exposed the members of the fund. The disqualified trustees approached the court for the review of the respondent's decisions. The present application is tied to the review application which is pending before the court. Considering the issues at stake, and the time within which the present application was filed, the court was satisfied that the applicants approached the court timeously and the nature of the harm that may arise if the matter was not heard on an urgent basis was not remote.

Improper citation of the first respondent

56. It was submitted that the first respondent was not properly cited because she was not the sole decision maker in the second respondent's board. She could therefore not be cited in proceedings challenging the decisions of the second respondent as such decisions were

made in the course of her employment. It was also submitted that it was procedurally incorrect to cite the first respondent as a party when in fact the first respondent was merely executing the resolutions of the whole board of the second respondent.

57. It was further submitted that the decision being challenged under HCH 1387/26 was that of the second respondent, and not the first respondent. Further, the decision to investigate the sale of the third respondent's property was that of the second respondent and not the first respondent.

58. In response, it was submitted on behalf of the applicants that the first respondent was cited in her official capacity, and not in her personal capacity. It was further submitted that the decision to disqualify and remove Chirewo and Mushawemhuka was made and communicated by the first respondent in her capacity as Commissioner. The letters effecting the removal of the two trustees were signed by the first respondent in her official capacity. It was the first respondent who was being restrained from implementing the said decision.

59. The court finds no merit in the objection. It is common cause that the decision which triggered litigation was communicated by the first respondent in her capacity as the Commissioner of Insurance and Provident Funds. The first respondent was cited in her official capacity as the administrative functionary who communicated the decision. At any rate, the second respondent itself was cited as a party herein.

60. According to the first respondent, the implementation of the decisions of the second respondent was reposed in her by virtue of her office. Paragraph 1 of the interim relief sought to interdict the first respondent from implementing her decision to disqualify and remove Chirewo and Mushawemhuka. The applicants did not seek that the first respondent be restrained in her personal capacity, but in her official capacity.

61. The court has already determined that the second respondent was not properly before it in the absence of a resolution authorising the first respondent to act on its behalf. Rule 32 (11) of the High Court rules provides that no cause or matter shall be defeated by reason of the misjoinder or non-joinder of any party and the court may in any cause or matter determine the issues or questions in dispute so far as they affect the rights and interests of the persons who are parties to the cause or matter.

62. It follows that if the first respondent's argument is accepted, the proceedings would still not be rendered fatal by her mere citation, when the second respondent had also been cited. It would mean that the application would still stand unopposed since the court

found that the second respondent was not properly before it. The citation of the first respondent in her official capacity does not disable the court from determining the issues before it. The preliminary point is accordingly dismissed.

The Merits

63. At this stage of proceedings, the application before the court is one for an interim order. The requirements for such an application to succeed at this stage were set out in *Airfield Investments (Pvt) Ltd* v *Minister of Lands, Agriculture and Rural Resettlement & Ors.*[7] MALABA JA (as he then was) said:

> "It must be borne in mind that an interim interdict is an extraordinary remedy, the granting of which is at the discretion of the court hearing the application for the relief. There are, however, requirements which an applicant for interim relief must satisfy before it can be granted. In *L F Boshoff Investments (Pty) Ltd v Cape Town Municipality* 1969 (2) SA 256 (C) at 267 A-F, CORBETT J (as he then was) said an applicant for such temporary relief must show:
>
> "(a) that the right which is the subject matter of the main action and which he seeks to protect by means of interim relief is clear or, if not clear, is *prima facie* established though open to some doubt;
>
> (b) that, if the right is only *prima facie* established, there is a well-grounded apprehension of irreparable harm to the applicant if the interim relief is not granted and he ultimately succeeds in establishing his right;
>
> (c) that the balance of convenience favours the granting of interim relief; and
>
> (d) that the applicant has no other satisfactory remedy."[8] (Underlining for emphasis)

64. At this stage, all that an applicant must demonstrate is that there exists a *prima facie* right, which may even be open to doubt. Rule 60 (9) of the High Court rules, 2021, is instructive. It states as follows:

> "Where in an application for a provisional order the judge is satisfied that the papers establish a *prima facie* case, he or she shall grant a provisional order either in terms of the draft filed or as varied."

65. The judge before whom an urgent application is placed only needs to satisfy himself that the papers before him establish a *prima facie* case. The significance of r 60(9) is that it permits the judge to formulate that view even without hearing the parties. What the

[7] *2004 (1) ZLR 511 (S)* at 517 C-E
[8] See also *Nhende v Zigora & Another* SC 102/22

applicants must therefore demonstrate at this stage is different from what they are required to demonstrate on the return date.

66. While at this stage the applicants must establish a *prima facie* right which may be open to doubt, this is not the case on the return date when they must prove their case on a balance of probabilities. It is on the return date that this court must interrogate the merits or demerits of the relief sought pending the determination of the review. At this stage, the court must therefore be careful not to stray and interrogate the very issues that the court is seized with on the return date.

67. From a consideration of the papers, the court was satisfied that the applicants managed to establish a *prima facie* case for the granting of the interim relief sought. The applicants are all members of the third respondent. They have vested rights in the way the fund is administered by the Board of Trustees. They are represented on the Board of Trustees by employee trustees who were disqualified, and such disqualification is the subject of a litigation process underway.

68. The applicants also demonstrated the existence of a well-grounded apprehension of irreparable harm. The dispute concerning the sale of the Kadoma property is still a live one. The possibility of decisions being made in the absence of a properly constituted board of the third respondent is not remote. Already there has been litigation involving the same property. The applicants also averred that there already existed a vacuum on the Board of Trustees in the absence of employee trustees. It was also alleged that the respondents had not invited the fund members to replace the disqualified trustees.

69. It was also averred that there was no other satisfactory remedy because the nomination of replacement trustees was a process which required compliance with the Pension Fund rules. Before the replacement trustees were appointed, the fund's governance structures were compromised, and there was risk of adverse action being taken by the fund's principal officer.

70. The balance of convenience favours the granting of the interim relief herein. There is already a pending matter which involve the same issues, and whose outcome has huge bearing on the future of the fund and its members. What the interim order simply seeks to avert is prejudice to all interested parties pending the determination of the matter on the return date. The review application is pending before this court, and this court is vested with inherent powers to regulate its own processes. The substantive dispute stands to be resolved by the review application, and it is only proper that pending the return date

any decisions that may have the effect compromising the review matter must be put on hold.

Conclusion

71. The relief sought herein on an interim basis was pending the finalisation of the application for review under HCH 1387/26. At this stage, this court can only grant relief pending the return date, because the relief sought is interim. The court on the return date will determine whether the interim order must be confirmed pending the determination of the review application. That decision will be made on a balance of probabilities with the court having had full arguments in that regard.

72. In terms of r 60(9), this court can grant relief as sought in the draft order or as varied. In *casu*, the modification is only necessary to the extent that the interim relief must be granted pending the return date and not pending the determination of the review application in HCH 1387/26, which is an issue for the court on the return date.

73. Similarly, the question of costs of suit is a matter that arises for determination on the return date and not at this stage of the proceedings. This court cannot grant costs of suit on an interim basis when the same interim order is the subject of confirmation proceedings on the return date.

Resultantly it is ordered that:

TERMS OF THE FINAL ORDER

That you show cause to this honourable court why a final order should not be made in the following terms:

1. Pending the finalisation of the application for review under case number HCH 1387/26, the first respondent's decision to disqualify and remove Messrs Leonard Chirewo and Victor Mushawemhuka as employee-appointed members of the board of Trustees of the Pelhams Limited Pension Fund is hereby stayed.
2. The first respondent to pay the costs of suit.
3. The second respondent to pay the cost of suit jointly and severally with the second respondent if it unsuccessfully defends this urgent application

INTERIM RELIEF GRANTED

1. Pending the return date, the first respondent is hereby interdicted and restrained from implementing the decision to disqualify and remove Leonard Chirewo and Victor Mushawemhuka as employee-appointed members of the Board of Trustees of the Pelhams Limited Pension Fund.
2. Pending the return date, the third respondent is hereby interdicted and restrained from taking any steps to reverse, set aside, cancel, or otherwise interfere with the sale of its

Kadoma commercial property concluded in September 2024 for the sum of USD640, 000.00.

3. Pending the return date, the third respondent is hereby interdicted and restrained from making or implementing any decisions regarding the administration and or distribution of the Fund's assets without the required representation of employee-appointed Trustees on its Board of Trustees as prescribed by the Fund's rules.

MUSITHU J: ……

C. Kuhuni Attorneys, applicants' legal practitioners
Kantor & Immerman, 1st and 2nd respondents' legal practitioners